

HOUSE BILL 1823

By Raper

AN ACT to amend Tennessee Code Annotated, Title 37, Chapter 1, Part 1; Title 49, Chapter 1; Title 49, Chapter 2 and Title 49, Chapter 6, relative to attendance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3001(c)(1)(B)(i), is amended by adding "attendance," before "academic," wherever it appears.

SECTION 2. Tennessee Code Annotated, Section 49-6-3009, is amended by adding the following as new subsections:

(o)

(1) If a student withdraws from an LEA, as defined in § 49-1-103, in which the student was receiving tier two or tier three interventions pursuant to the LEA's progressive truancy plan, and the student does not transfer to another LEA, as defined in § 49-1-103, then the director of schools shall report the student's absences to the judge with juvenile jurisdiction in the county in which the student resides.

(2) Each case must be dealt with in such manner as the judge may determine to be in the best interest of the student, consistent with §§ 37-1-132, 37-1-168, and 37-1-169. In the event a student in kindergarten through grade twelve (K-12) is adjudicated to be unruly because the student has accumulated five (5) days or more of unexcused absences during any school year, the judge may assess a fine of up to fifty dollars (\$50.00) or community service, in the discretion of the judge, against the parent or legal guardian of the student.

(3) A referral to juvenile court for conduct described in this subsection (o) must be accompanied by a statement from the director of schools certifying that:

(A) The school applied the progressive truancy interventions of the progressive truancy plan adopted under subsection (d) for the student while the student was enrolled in the LEA; and

(B) The student withdrew from the LEA and has not enrolled in another LEA.

(p) If a student transfers during the school year, then the number of unexcused absences accumulated in the school year by the student at the school or LEA from which the student is transferring must be included in the number of unexcused absences for the student at the receiving school or LEA for purposes of this section.

SECTION 3. Tennessee Code Annotated, Section 49-6-3009(i), is amended by adding "or subsection (o), if applicable" after "with subsection (h)".

SECTION 4. Tennessee Code Annotated, Section 49-6-3009(g), is amended by deleting "five (5) hours of".

SECTION 5. Tennessee Code Annotated, Section 49-6-3007, is amended by adding the following as a new subsection:

(i) If a student transfers during the school year, then the number of unexcused absences accumulated in the school year by the student at the school or LEA from which the student is transferring must be included in the number of unexcused absences for the student at the receiving school or LEA for purposes of this section.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.